

[Islamabad High Court]

Judges: Honourable Mr. Justice Muhammad Asif



MUHAMMAD UZAIR ANWAR-

versus

-FOP

JURISDICTION OF NCCIA TO FREEZE ACCOUNTS

W.P No. 2883 of 2025, W.P No. 2882 of 2025, W.P No. 2884 of 2025, W.P No. 2885 of 2025
decided on 11th August, 2025.

(a) Prevention of Electronic Crimes Act, 2016---S.29, S.32, S.37; Anti-Money Laundering Act, 2010---S.8---Jurisdiction of NCCIA to freeze accounts---

The NCCIA acted within its statutory mandate under PECA 2016 and AMLA 2010, which authorize investigating cyber offences and preserving assets suspected to be proceeds of crime.

Sections 29, 32, and 37 of PECA 2016 read with Section 8 of AMLA empower the Agency to adopt urgent measures, including freezing financial assets used in or derived from cybercrime, to preserve evidence and prevent dissipation.

Barrister Abdul Ahad Khokhar for Appellant.

Ms. Shaista Tabassum, Mr. Shahid Riaz, Ms. Sumiara Jabbar, Mr. Abdul Hameed Baloch, Mr. Ubaid Malik, Mr. Muhammad Talha Khalid for Respondent.

Mr. Muhammad Nadir Khan for Department.

(b)

The lack of advance notice does not render the action illegal as prior notice could frustrate the object of the law by enabling the transfer or withdrawal of funds.

In cases involving suspected proceeds of crime or national security, immediate freezing of assets without prior notice is permissible to preserve the financial trail, provided the action is based on statutory authority and subject to subsequent due process.

Barrister Abdul Ahad Khokhar for Appellant.

Ms. Shaista Tabassum, Mr. Shahid Riaz, Ms. Sumiara Jabbar, Mr. Abdul Hameed Baloch, Mr. Ubaid Malik, Mr. Muhammad Talha Khalid for Respondent.

Mr. Muhammad Nadir Khan for Department.

(c) Constitution of the Islamic Republic of Pakistan, 1973---S.Article 199, S.Article 10-A, S.Article 19, S.Article 25---Judicial review of ongoing inquiries---

The Court declined to quash the inquiry, holding that investigations fall within the executive domain and interference is only warranted in cases of manifest mala fide or patent lack of jurisdiction.

Constitutional jurisdiction under Article 199 should be exercised sparingly in investigative matters; courts do not quash inquiries at a preliminary stage unless the process is wholly without jurisdiction or evidently tainted by mala fide.

Relied upon: Muhammad Hanif v. The State 2019 SCMR 2029; FIA through DG v. Syed Hamid Ali Shah PLD 2023 SC 265; Ajmeel Khan v. Abdul Rahim PLD 2009 SC 102

Barrister Abdul Ahad Khokhar for Appellant.

Ms. Shaista Tabassum, Mr. Shahid Riaz, Ms. Sumiara Jabbar, Mr. Abdul Hameed Baloch, Mr. Ubaid Malik, Mr. Muhammad Talha Khalid for Respondent.

Mr. Muhammad Nadir Khan for Department.

The petitions are, therefore, dismissed along with all pending applications.

ORDER SHEET

IN THE ISLAMABAD HIGH COURT, ISLAMABAD. JUDICIAL DEPARTMENT.

W.P No.2883 of 2025

Muhammad Uzair Anwar & 2 others

Vs.

FoP through Secretary Ministry of Interior GoP & others

W.P No.2882 of 2025

Sajid Nadeem

Vs.

FoP through Secretary Ministry of Interior GoP & others

W.P No.2884 of 2025

Orya Maqbool Abbasi & 2 others

Vs.

FoP through Secretary Ministry of Interior GoP & others

W.P No.2885 of 2025

Makhdoom Muhammad Shahab ud Din & 3 others

Vs.

FoP through Secretary Ministry of Interior GoP & others

S. No. of order/ proceedings	Date of order/ proceedings	Order with signature of Judge and that of parties or counsel where :
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11.08.2025 Barrister Abdul Ahad Khokhar, Advocate for Petitioners.

Ms. Shaista Tabassum, AAG.

Mr. Shahid Riaz, Advocate for respondent No.8

Ms. Sumiara Jabbar, Advocate for respondent No.9.

Mr. Abdul Hameed Baloch, Advocate for Meezan Bank in writ petition No.2884 and 2885 of 2025.

Mr. Ubaid Malik, Senior Manager Litigation.

Mr. Muhammad Nadir Khan, S-I/NCCIA/ISB.

Mr. Muhammad Talha Khalid, Relationship Manager, HBL in writ petition No.2885 of 2025.

MUHAMMAD ASIF, J.-. The above-titled writ petitions

having substantial commonality in facts and legal issues, are being decided together through this common order.

2. The case of the petitioners, in brief, is that the National Cyber Crimes Investigation Agency (“**NCCIA**”), froze their bank accounts as well as those of certain family members. They assert that such action violates Articles 10-A, 19, and 25 of the Constitution of the Islamic Republic of Pakistan, 1973 (“**the Constitution**”). They, therefore, seek immediate de-freezing of all accounts and withdrawal of communications issued to banks in this regard.

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3. Learned counsel for the petitioners submits that the NCCIA has acted without lawful mandate. It is argued that no provision of law authorizes the Agency to arbitrarily freeze bank accounts without notice or warning. Such action, according to counsel, infringes upon multiple fundamental rights guaranteed by the Constitution. The freeze, counsel points out, extends even to accounts of family members with no nexus to the alleged inquiry, thereby aggravating the illegality. It is further submitted that even if an inquiry is pending, economic restrictions of this nature cannot be imposed indefinitely without lawful authority or a court order. Learned counsel, thus, prays for acceptance of this petition.

4. Conversely, the learned Assistant Attorney General (AAG) submits that an inquiry was initiated on 09.04.2025 by the NCCIA, pursuant to a source report prepared by Technical Assistant Anees-ur-Rehman. The report alleged that the petitioners were uploading anti-State material, selling sensitive information to foreign entities, receiving financial benefits therefrom, and laundering the proceeds through cryptocurrency and formal banking channels. It is further submitted that freezing the accounts was necessary to preserve suspected proceeds of crime and prevent their dissipation. The petitioners, according to the AAG, were informed of the investigating officer’s name and office address, yet they did not appear or offer any defence. At the inquiry stage, it is argued, detailed notices are not always required, particularly where allegations involve national security and money laundering.

5. I have considered the respective submissions, examined the available record, and reviewed the relevant provisions of the Prevention of Electronic Crimes Act, 2016 ("PECA 2016"), the Anti-Money Laundering Act, 2010 ("AMLA"), and the rules made thereunder. The following questions arise for determination:

i. Whether the NCCIA acted without lawful jurisdiction in initiating the inquiry and freezing the accounts?

ii. Whether the lack of advance notice renders the action illegal?

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iii. Whether this Court should quash or restrain the ongoing inquiry at this stage?

6. On the first question, the NCCIA derives its mandate from PECA, 2016, which under Section 29 empowers the Agency to investigate offences involving unauthorized access, cyber terrorism, and electronic fraud, while Section 37 authorizes immediate measures to preserve electronic evidence and prevent the commission of further offences. Additionally, Section 32 of PECA permits retention and protection of data and property reasonably suspected to relate to an offence, which includes freezing financial assets used in or derived from cybercrime activity. When read together with Section 8 of AMLA, which authorizes attachment or freezing of suspected proceeds of crime, the statutory scheme clearly enables NCCIA to adopt urgent measures in cases of cyber-enabled money laundering linked to anti-State activities. These provisions create both the substantive authority and procedural framework for freezing measures during inquiry. Judicial precedent recognizes that such action, when based on reasonable grounds, does not constitute an overreach unless mala fide or patent lack of jurisdiction is demonstrated through cogent evidence.

7. On the second question, the petitioners' stance that accounts cannot be frozen without notice overlooks the reality that in cases involving suspected proceeds of crime or national security concerns, prior notice could enable transfer or withdrawal of funds, frustrating the object of the law. The power to secure assets at an early stage is recognized to preserve the financial trail. Such measures are permissible so long as they are taken under statutory authority and are subject to subsequent due process. In the present case, the NCCIA's action was linked to allegations of serious nature: anti State propaganda, sale of sensitive data, and laundering of funds. Freezing accounts at the inception of the inquiry, in this context, does not appear arbitrary or without jurisdiction.

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8. Under our constitutional scheme, the judiciary, executive, and legislature operate within their respective domains. Inquiries and investigations fall within the executive domain and are carried out by agencies like NCCIA under statutory mandate. The Court may intervene only where there is manifest mala fide, patent lack of jurisdiction, or an infringement of fundamental rights. Article 199 of the Constitution empowers the High Court to exercise judicial review; however, such jurisdiction is to be exercised sparingly and only in exceptional circumstances, so as not to frustrate or hinder the lawful functioning of investigative agencies acting within their statutory mandate. Any unwarranted interference in investigative processes compromises the doctrine of separation of powers and significantly undermines the administration of justice. In this context, reliance can be placed on *Muhammad Hanif v. The State* (2019 SCMR 2029), *FIA through DG v. Syed Hamid Ali Shah* (PLD 2023 SC 265), and *Ajmeel Khan v. Abdul Rahim* (PLD 2009 SC 102).

9. As to the third question, the petitioners seek sweeping relief, essentially stopping the inquiry in its tracks. The law is settled that courts do not quash inquiries or investigations at a preliminary stage unless the process is wholly without jurisdiction or evidently tainted by mala fide. No such exceptional circumstances have been demonstrated here. The petitioners have not been subjected to any coercive action other than the freezing of accounts in aid of investigation. They remain at liberty to join the inquiry, produce exculpatory material, and avail themselves of legal remedies if any unlawful action is taken in the future. At this stage, however, the matter is still under inquiry and the NCCIA is acting within its statutory remit.

10. The petitioners' reliance on Articles 10-A, 19, and 25 of the Constitution is also misplaced. None of these rights are absolute; all are subject to reasonable restrictions imposed by law in the interest of integrity, security, and defence of Pakistan, public order, and prevention of crime. Where statutory authority exists and action is taken in good faith for preserving evidence and securing suspected

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proceeds of crime, a temporary restriction on access to funds does not amount to unconstitutional deprivation. The record demonstrates that the petitioners were aware of the investigating office but chose not to appear or produce any exculpatory material. Non-cooperation disentitles them to discretionary relief in writ jurisdiction.

11. In view of the foregoing discussion, I find no justification to exercise this Court's extraordinary constitutional jurisdiction to interfere with the ongoing inquiry or to order de-freezing of accounts at this premature stage. The petitions are, therefore, dismissed along with all pending applications. However, it is directed that the petitioners shall be afforded a fair opportunity to present their case before the NCCIA, Islamabad and that no further adverse action shall be taken without due process and in accordance with law.

A copy of this order shall be sent to the Director General,

NCCIA, Islamabad, for information and compliance.

(MUHAMMAD ASIF)

JUDGE

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